

SCHOOL ASSIGNMENT

The School Board shall assign students to the school that serves the area of their actual residence. Students will attend the school designated by the School Board in the attendance zone in which the students reside in the pupil assignment plan (also called “regular school of assignment”). Exceptions to school assignment will be made in accordance with School Board Policies [8160](#), “*Exceptions to School Assignment Due to Attendance Zone Change*” and 8155, “*School Assignment*” as provided herein:

A. Definitions.

1. An over-enrolled school is a school where the number of students exceeds the building’s base capacity. This can lead to challenges like overcrowded classrooms, limited resources, and strain on facilities, impacting both teaching and learning conditions. In Loudoun County Public Schools (LCPS), school capacity is generally calculated as follows:

- a. Overall Capacity: LCPS schools are calculated to a capacity of 85% of the building’s base capacity to allow for enrollment fluctuations.
- b. Elementary Schools: Calculated at 85% capacity both per grade level and for the overall base capacity, ensuring manageable class sizes and accommodating variation in grade-specific enrollments.
- c. Secondary Schools: Calculated at 85% of the overall base capacity, providing a buffer to manage the overall student population and avoid overcrowding across grade levels. When schools exceed these capacity thresholds, they are considered over-enrolled and may face additional challenges in managing space and resources.

2. Applications for Special Permission. An application for special permission is a formal request submitted by a parent or legal guardian to allow the student to attend a school outside of their assigned attendance area within LCPS.

3. Renewals for Special Permission. The renewal process for special permission is a procedure that allows families to confirm their intent for a student to continue attending a school previously approved for special permission, submitted on or before March 1st. This process ensures that students who were granted special permission can maintain their placement if they continue to meet the division’s criteria.

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B. Instructional Suitability. Instructional suitability is the reassignment of a student to a different school when it becomes necessary to provide a more appropriate instructional program that meets the student's academic, social or emotional needs. Instructional suitability is a request by a parent or legal guardian to transfer a student to a non-over enrolled school other than the regular school of assignment. This transfer is done at the discretion of the school division and may be a result of disability, disciplinary, safety, social/emotional or mental health concerns. Issues concerning student mental or physical health or that arise due to a significant life event may be addressed anytime during the year.

Once a parent or legal guardian has exhausted all school resources as outlined in [8155-Reg C. 4](#), they may request that their student, be reassigned to a non-over enrolled school. Students reassigned due to instructional suitability are not entitled to transportation services provided by the school division unless specified otherwise and in accordance with established transportation policies and procedures. Instructional suitability that is approved for an elementary school grade level has no bearing on whether instructional suitability will be approved for a student to attend a middle school from an elementary school. Instructional suitability that is approved for a middle school grade level has no bearing on whether instructional suitability will be approved for a student to attend a high school from that middle school. Instructional suitability may (but does not have to be) be approved for multiple years at the middle and high school level, until the student completes the highest-grade level at the school where instructional suitability was granted, with the following conditions:

1. The student's approval to the school that instructional suitability was granted has not been rescinded, during the school year, by the parent or legal guardian, or LCPS.

2. For over-enrolled schools, an instructional suitability renewal request must be submitted by March 1. Renewal applications, for over- enrolled schools, received after March 1 will go through the regular instructional suitability process. Students who are approved for instructional suitability, under a renewal request, are subject to the same conditions set forth in this policy for all students on instructional suitability.

If instructional suitability is denied any time during the school year, it shall be allowed review by the appeals process captured in Policy [2350](#).

Specialized academic programs and specialized special education programs have separate procedures for the placement of students.

C. Relieving Overcrowding. At the discretion of the school division, students may be reassigned to a school other than their regular school of assignment, for the purpose of relieving overcrowding (also called "school reassignment"), if the regular school of assignment or a particular grade level at an elementary school of assignment is

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overcrowded. In such situations, the student may be reassigned to another school in which suitable capacity exists, with transportation provided by the school division. Effort will be made to reassign a student to the closest possible school with suitable capacity, and to return the student to their regular school of assignment at the start of the next school year providing the overcrowding no longer exists.

The following order of priority will be used to determine student school assignments during or immediately following school reassignments:

1. Students remaining within their regular school of assignment;
2. Students returning from a school reassignment to their regular school of assignment;
3. Students remaining at the reassigned school who would be doing so by special permission (without transportation provided by the school division);
4. Incoming/new students with siblings already attending the school. This sub-section is intended to ensure that, to the greatest extent possible based on space availability, incoming kindergarten students and/or first graders will be able to attend the same regular school of assignment in which their older siblings are already enrolled. Only those schools projected to exceed the established grade level maximums at kindergarten and/or first grade will implement Regulation [8155](#) concerning sibling school assignments;
5. Incoming/new students enrolling in their regular school of assignment prior to July 1;
6. Students enrolled by special permission (see section D below); and
7. Incoming/new students enrolling after July 1.

Each situation that falls under one of the above sub-sections is subsequently prioritized against others within that situation based on the date of enrollment at that particular school.

D. Rezoning and Students Placed Through Special Permission or Instructional Suitability.

During any approved school boundary change or rezoning process, the following procedures shall apply to students attending a school through *special permission* or for *instructional suitability*:

1. Students on Special Permission.

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- a. When school boundaries are adjusted, students attending a school through special permission who are affected by the rezoning will revert to their new base school of residence as determined by the approved attendance boundaries.
- b. Families of these students may submit a new application for special permission in accordance with established procedures and timelines outlined in this policy and associated regulations.
- c. Continued attendance at the previously assigned school is not guaranteed and is subject to the approval of a new special permission request.

2. Students Placed for Instructional Suitability.

- a. Students attending a school through placement based on instructional suitability will remain at their assigned school for the duration of the placement, regardless of changes to attendance boundaries resulting from rezoning.
- b. These students will not be required to return to their base school of residence and do not need to reapply for placement due to boundary adjustments.

E. Special Permission. Special permission is a privilege for LCPS students. Special permission is not automatically approved, granted, or guaranteed year after year. A parent or legal guardian may request for their student to attend a school of their choice by special permission if that school is not projected to be over-enrolled and under the following conditions:

1. Application Requirements for Special Permission.

- a. An appropriate new application must be submitted annually by the parent, or legal guardian of the student (via a special permission request) between the first business day of February and April 30. Applicants may, but are not required to, identify the reason for the special permission request. Applicants are encouraged, but not required, to provide documentation supporting the request and reason for it.
- b. A special permission renewal request must be submitted between the first business day of February and March 1. Students who are approved for special permission under a renewal request are subject to the same conditions set forth in this policy for all students on special permission.

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- c. Applications to schools which are projected to be over-enrolled will not be accepted. This does not apply to renewals within the window.
- d. There is a commitment of the student's parent or legal guardian to provide a means of reliable transportation for the student to and from the school, as transportation of the student will not be provided by the school division.

2. Approval Requirements for Special Permission. Approval may be granted under the following conditions:

- a. Sufficient capacity must exist at the requested school for the student to attend on special permission without causing or exacerbating overcrowding, a school reassignment, or without requiring additional staff or incurring additional cost to the school system.
- b. An appropriate instructional program is available, at the requested school, to adequately meet the student's educational needs.

3. Other Factors for Special Permission:

- a. Special permission may be approved for rising 5th graders who have previously been granted special permission for a school with the following conditions:
 - (i) The student's approval to the school that special permission was granted has not been rescinded, during the school year, by the parent or legal guardian, or LCPS.
 - (ii) A special permission renewal request must be submitted by March 1. Students who are approved for special permission, under a renewal request, are subject to the same conditions set forth in this policy for all students on special permission.
- b. Special permission that is approved for an elementary school grade level has no bearing on whether special permission will be approved for a student to attend a middle school from an elementary school. Special permission that is approved for a middle school grade level has no bearing on whether special permission will be approved for a student to attend a high school from that middle school. Special permission may (but does not have to be) be approved for multiple years at the middle and high

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school level, until the student completes the highest-grade level at the school where special permission was granted, with the following conditions:

- (i) The student's approval to the school that special permission was granted has not been rescinded, during the school year, by the parent or legal guardian, or LCPS.
 - (ii) For over-enrolled schools, a special permission renewal request must be submitted by March 1. Renewal applications, for over- enrolled schools, received after March 1 will go through the regular special permission process. Students who are approved for special permission, under a renewal request, are subject to the same conditions set forth in this policy for all students on special permission.
- c. Notwithstanding all other special permission requirements, special permission may be approved for siblings when at least one sibling is already approved for special permission at the requested school, and
 - (i) Separating the students would create a potential hardship for the family;
 - (ii) Approval would not require additional staff or incurring additional costs; and
 - (iii) The principal is in agreement with approving the request.
- d. Notwithstanding all other special permission requirements, special permission may be approved for students whose siblings were placed at another school for a specialized special education program. Transportation for the sibling is not provided.
- e. Special permission is contingent upon the student being in compliance with school rules and regulations and may be rescinded. Failure to meet expectations following special permission approval for the upcoming school year may result in a principal initiating a warning letter that special permission may be rescinded. Prior to requesting that special permission be rescinded, the principal shall provide notice to the student and family and afford the student and family opportunity to address the concerns. Parents and students will be offered the opportunity to meet with school administration, IEP/504 case manager (if applicable) and school counselor or request an IEP/504 meeting (if

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applicable). Special permission that is rescinded by the Office of Student Services is appealable under Policy 2350, Appeal of Administrative Decisions.

- f. Identifying and evaluating all other ramifications of attending a school by special permission is the responsibility of the parent or legal guardian, prior to submitting a request. Ramifications may include, but are not limited to, changes in future-year capacity that precludes renewal of the request for special permission and certain athletic or Virginia High School League (VHSL) participation restrictions. Subsequent to LCPS approving a special permission request for a student to attend a school other than their regular school of assignment (or the student returning to a regular school of assignment), under VHSL rules, such transfer/return will generally result in 365 days of ineligibility for the student to participate in VHSL sports and other activities, unless:
 - (i) There is an actual corresponding change of residence of the parent or legal guardian;
 - (ii) The student's situation meets an exception as defined by VHSL, students under McKinney-Vento status, [VHSL Handbook](#); or
 - (iii) A waiver is requested under VHSL transfer rule 28A-7-1 and has been granted, based on a determination that the request meets the criteria applicable for a waiver under that rule. Such waiver shall not be granted if the request is motivated by a desire to circumvent the transfer rule and/or achieve a specific activity or athletic outcome, among other VHSL restrictions. Parents or legal guardian are responsible for understanding all potential VHSL repercussions of changing schools by special permission.

4. Special Permission Application Timeline.

- a. Applications for Special Permission will be processed in the following manner:
 - (i) Applications for special permission for LCPS students may be submitted beginning on the first business day of February through April 30.
 - (ii) LCPS employees who reside in Loudoun County and who are parents or legal guardian of school-age students may

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apply for special permission beginning on the first business day of January through April 30, for their children to attend another school, or within 30 calendar days of being hired or transferred. In some years, LCPS may require that the opening of the application window for employees be delayed to no later than the third Tuesday of January.

- (iii) Co-curricular employees, substitutes, or other staff that are not full-time LCPS employees, are not eligible to apply early (first business day of January through January 31) for special permission for their child.
- (iv) Notwithstanding the school capacity determinations set forth within this policy, nothing in this section shall be interpreted to limit the discretion of school principals to allow the children of employees to enroll in and attend said schools.
- (v) Special permission requests will be processed in the order in which they are received.
- (vi) Official determinations on special permission requests will be provided to the parent, or legal guardian, within 30 days of the date the request was received, except for special permission requests for students to attend kindergarten at a school other than their regular school of assignment.
- (vii) Official determinations for kindergarten students that apply for special permission by April 30 will be provided to the parent or legal guardian, by July 1.

- b. Students new to LCPS must enroll in their home school per LCPS Policy [8115](#), Individuals Who May Be Admitted Free, and Policy [8125](#), Student Admission. Students not enrolled in LCPS are not eligible to apply for special permission.

5. Special Permission Appeals Timeline.

When special permission is denied, parents or legal guardians may appeal to the Director of Student Services. If the appeal for special permission requests is denied by the Director of Student Services, the parents or legal guardians may appeal to the School Board committee per school board policy 2350, Appeal of Administrative Decisions.

- a. The School Board Committee's decision is final.

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E. In-County Residence Changes. Requests citing these provisions are accepted through the end of the current school year.

1. “Move Out” - A student who changes residence within Loudoun County after the first day of school may, upon request of the parent, adult student, or legal guardian, complete that school year in the school in which the student was originally enrolled, provided that the parent or legal guardian, provides transportation to and from school. A student who is a junior at the time of changing residence may, upon request of the parent or legal guardian, continue to attend the school to which he or she was enrolled prior to the change of residence, regardless of capacity, until graduation, provided that the parent or legal guardian, provides any necessary transportation to and from school. A special permission request will be required for the student to attend the school their senior year.

2. “Move In” - A parent or legal guardian, who is in the process of buying, building, renting, or leasing a home in an attendance area other than the one in which they presently reside in Loudoun County may be assigned to the school that the student will attend when they move into their new home, provided that the school or elementary grade level is not over-capacity, and only if the lease start date or settlement date of such home will be completed within the school year. Any parent or legal guardian that has moved into a new attendance area may have their primary residency verified by school staff to ensure VHSL eligibility for their student. The parent or legal guardian must provide transportation to and from school.

F. Other Considerations.

1. Renewal. Special Permission requests previously granted must be renewed annually by April 30 for the next school year. Approvals for requests to continue to attend the requested school will be made in consultation with the principal and the director at the appropriate level (elementary, middle, or high).

2. All reassignments and transfers under this policy shall be done in a non-discriminatory manner per Policy [8030](#), Student Discrimination and Harassment and Policy [7014](#), Environments Free From Harassment, Discrimination, and Abuse.

3. Any student assignment or transfer that is a result of disciplinary or safety considerations, or that is pursuant to a court order requires:

- a. Notification to the Superintendent; and
- b. A meeting among the staff of the student’s current school and receiving school (to include from both schools, the principal or designee, IEP/504 case manager (if applicable), and school counselor), a representative from the Office of Safety and Security,

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and any outside agencies that may have any relevant information regarding the student, including, but not limited to local law enforcement, court services, private providers, and the Office of the Commonwealth Attorney for the purpose of discussing any relevant safety considerations.

G. Charter Schools. This policy does not apply to students enrolled in Charter Schools. These students are enrolled directly by law and through the agreements with the Charter School.

[Former Policy 8-20]

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Cross Refs.: Policy [2350](#), Appeal of Administrative Decisions, Policy [5065](#), Kindergarten, Policy [5080](#), Class Sizes, Policy [5410](#), Charter Schools, Policy [6530](#), Changing School Attendance Zones, Policy [8160](#), Exceptions to School Assignment Due to Attendance Zone Change, Policy [8115](#), Individuals Who May be Admitted Free, Policy [8125](#), Admission Requirements, Policy [8030](#), Student Discrimination and Harassment, Policy [7014](#), Environments Free from Harassment, Discrimination, and Abuse